Govind Kumar & Anr vs The State Through Sho Ps Gokul Puri, ... on 10 October, 2023

Author: Jyoti Singh

Bench: Jyoti Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.M.C. 7390/2023
GOVIND KUMAR & ANR.
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THE STATE THROUGH SHO PS GOKUL PURI, DELHI & ANR.
Through: Mr. Amit Sahni, AP
IO ASI Manvir Singh, PS Gok
Mr. Faizan and Mr. Sandeep
for R-2 along with R-2 in p

CORAM:
HON'BLE MS. JUSTICE JYOTI SINGH
OR

% 10.10.2023 CRL. M.A. 27555/2023 (Exemption) Allowed, subject to all just exceptions.

Application stands disposed of.

1. This is a petition under Section 482 Cr.P.C. seeking quashing of FIR No.360/2023 dated 30.09.2023 under Section 394/34 IPC registered at PS:

Gokul Puri, Delhi and consequential proceedings emanating therefrom.

2. Present FIR was registered pursuant to a complaint made by Respondent No. 2. As per the allegations in the FIR, on 30.09.2023 at about 16:10 hours, Petitioners were riding on their motorcycle and enroute on a red light, they stopped the complainant and gave him kicks and fists blows This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/10/2023 at 03:53:09 and also snatched away his gold chain and cash of Rs.50,000/- lying in his car. Complainant dialled 100 number and after receiving first aid at a Nursing Home gave statement to the police, which culminated into registration of the present FIR.

3. By the present petition, quashing of the FIR is sought and it is stated that on 01.10.2023 i.e. on the very next day of registration of the FIR, Complainant in fact found his gold chain lying under the driver's seat of his own car and intimation of this was given to the IO personally by the Complainant. However, IO expressed his inability to close the case as the FIR has been registered. As the FIR was a result of sheer misunderstanding, Complainant and Petitioners entered into a settlement in order to put an end to the acrimonious feelings qua each other and bury the hatchet. A compromise deed was executed on 07.10.2023, copy of which has been placed on record. It is further stated that Petitioners are college going boys aged 23 and 21 years, respectively, with bright future ahead and are preparing for various competitive examinations and have no criminal antecedents. It is further stated that Petitioners were arrested on 03.10.2023 and produced before the learned Metropolitan Magistrate on 04.10.2020 but were immediately released on the Complainant making a statement that he had discovered his chain in his own car on the next day and Petitioners were not responsible for snatching.

4. Issue notice.

5. Learned APP accepts notice on behalf of the State.

6. Mr. Faizan, learned counsel accepts notice on behalf of Respondent No. 2.

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7. Learned counsel for the Petitioners states that genesis of the dispute lies in a misunderstanding that Petitioners had snatched the gold chain of the Complainant, which is factually incorrect, admittedly. It is submitted that the Complainant has filed an affidavit stating so during the pendency of the bail proceedings. It is, therefore, prayed that the FIR be quashed so that the future career of the Petitioners, who are young boys, is not jeopardized.

8. Respondent No. 2/ Complainant is present in Court and has been identified by the Investigating Officer ASI Manvir Singh, PS Gokul Puri. Supporting the Petitioners, the Complainant submits that the allegations made against the Petitioners are a result of misunderstanding and the FIR be quashed since he discovered that his chain was in fact lying under the driver's seat in his own car. The moment this discovery was made on the next day, he had informed the IO that Petitioners were not at fault.

9. Mr. Sahni, learned APP submits that the allegations in the FIR are not restricted to the snatching of chain alone but extend to the Petitioners having run away with cash of Rs.50,000/- from the car of the Complainant. This fact is, however, disputed not only by the counsel for the Petitioners but by the Complainant. It is categorically stated by the Complainant that initially, he had an impression that the Petitioners had fled with the cash, however, later in the evening, he found that the cash was lying in the car albeit at a different place from where he had kept it.

10. Supreme Court in Parbatbhai Aahir alias Parbatbhai Bhimsinhbhai Karmur and Others v. State of Gujarat and Another, (2017) 9 SCC 641, has reiterated the parameters for exercising inherent jurisdiction under Section 482 Cr.P.C. for quashing of FIR/criminal complaint and relevant passages are as follows:-

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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/10/2023 at 03:53:09 "16. The broad principles which emerge from the precedents on the subject, may be summarised in the following propositions :
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> 16.1. Section 482 preserves the inherent powers of the High Court to prevent an abuse of the process of any court or to secure the ends of justice. The provision does not confer new powers. It only recognises and preserves powers which inhere in the High Court.
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> 16.2. The invocation of the jurisdiction of the High Court to quash a first information report or a criminal proceeding on the ground that a settlement has been arrived at between the offender and the victim is not the same as the invocation of jurisdiction for the purpose of compounding an offence. While compounding an offence, the power of the court is governed by the provisions of Section 320 of the Code of Criminal Procedure, 1973. The power to quash under Section 482 is attracted even if the offence is non-compoundable. 16.3. In forming an opinion whether a criminal proceeding or complaint should be quashed in exercise of its jurisdiction under Section 482, the High Court must evaluate whether the ends of justice would justify the exercise of the inherent power.
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> 16.4. While the inherent power of the High Court has a wide ambit and plenitude it has to be exercised (i) to secure the ends of justice, or (ii) to prevent an abuse of the process of any court.
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> 16.5. The decision as to whether a complaint or first information report should be quashed on the ground that the offender and victim have settled the dispute, revolves ultimately on the facts and circumstances of each case and no exhaustive elaboration of principles can be formulated. 16.6. In the exercise of the power under Section 482 and while dealing with a plea that the dispute has been settled, the High Court must have due regard to the nature and gravity of the offence. Heinous and serious offences involving mental depravity or offences such as murder, rape and dacoity cannot appropriately be quashed though the victim or the family of the victim have settled the dispute. Such offences are, truly speaking, not private in nature but have a serious impact upon society. The decision to continue with the trial in such cases is founded on the overriding element of public interest in punishing persons for serious offences.

> 16.7. As distinguished from serious offences, there may be criminal cases which have an overwhelming or predominant element of a civil dispute.

They stand on a distinct footing insofar as the exercise of the inherent power to quash is concerned.

16.8. Criminal cases involving offences which arise from commercial, financial, mercantile, partnership or similar transactions with an This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 15/10/2023 at 03:53:10 essentially civil flavour may in appropriate situations fall for quashing where parties have settled the dispute.

16.9. In such a case, the High Court may quash the criminal proceeding if in view of the compromise between the disputants, the possibility of a conviction is remote and the continuation of a criminal proceeding would cause oppression and prejudice; and 16.10. There is yet an exception to the principle set out in propositions 16.8. and 16.9. above. Economic offences involving the financial and economic well-being of the State have implications which lie beyond the domain of a mere dispute between private disputants. The High Court would be justified in declining to quash where the offender is involved in an activity akin to a financial or economic fraud or misdemeanour. The consequences of the act complained of upon the financial or economic system will weigh in the balance."

11. Earlier, in the case of Narinder Singh and Others v. State of Punjab and Another, (2014) 6 SCC 466, the Supreme Court held:-

> "29.1. Power conferred under Section 482 of the Code is to be distinguished from the power which lies in the Court to compound the offences under Section 320 of the Code. No doubt, under Section 482 of the Code, the High Court has inherent power to quash the criminal proceedings even in those cases which are not compoundable, where the parties have settled the matter between themselves. However, this power is to be exercised sparingly and with caution.
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> 29.2. When the parties have reached the settlement and on that basis petition for quashing the criminal proceedings is filed, the guiding factor in such cases would be to secure:
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> (i) ends of justice, or
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> (ii) to prevent abuse of the process of any court.

While exercising the power the High Court is to form an opinion on either of the aforesaid two objectives.

29.3. Such a power is not to be exercised in those prosecutions which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Similarly, for the offences alleged to have been committed under special statute like the Prevention of Corruption Act or the offences committed by public servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender."

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12. It is true that offence under Section 394 IPC is non-compoundable, however, in the case of B.S. Joshi v. State of Haryana, (2003) 4 SCC 675, the Supreme Court had observed that even though provisions of Section 320 Cr.P.C. would not apply to offences which are non-compoundable, it does not limit or affect the powers under Section 482 Cr.P.C. The Court held that if for the purpose of securing the ends of justice quashing of FIR becomes necessary, Section 320 Cr.P.C. would not be a bar to the exercise of such power.

13. In view of the settlement arrived at between the parties and the fact that the Complainant has taken a categorical stand consistently that Petitioners are not responsible for taking away the gold chain and cash and also the fact that parties have compromised the matter to maintain peace and harmony and Petitioners are young boys of 23 and 21 years of age respectively, with no criminal antecedents as confirmed by the IO, FIR No.360/2023 dated 30.09.2023 under Sections 394/34 IPC registered at PS:

Gokul Puri, Delhi is quashed along with all proceedings emanating therefrom.

14. However, it needs to be noted that both sides are responsible for using the State machinery and considerable time of the Police has been utilized and therefore, the quashing will be subject to the Petitioners as well as the Complainant depositing a sum of Rs.10,000/- each with the Delhi Police Martyrs' Fund in Current Account No.18200110036907, UCO Bank, IIPA, New Delhi, within a period of four weeks from today. Proof in support thereof shall be filed with the Registry within 01 week thereafter and in case of failure to comply with the direction, the matter will be listed by the Registry in Court.

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15. Petition stands disposed of.

JYOTI SINGH, J OCTOBER 10, 2023/shivam/KA This is a digitally signed order.

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